

OFFICE OF THE SECRETARY

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August 13, 2024

The Honorable Elizabeth Lee
Judge of the Superior Court
County of San Mateo
400 County Center
Redwood City, CA 94063

Re: CABONCE, JERRY LARIOS
CDCR No: F68202
Case No: SC057817
Date of Sentence: March 26, 2007

Dear Honorable Elizabeth Lee:

The purpose of this letter is to provide the court with the authority to resentence incarcerated person Jerry Lariosa Cabonce, F68202, pursuant to Penal Code (PC) Section 1172.1, Subdivision (a)(1), based upon a change in sentencing law. PC 1172.1(a)(1) provides that upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may consider recalling a previously ordered sentence, provided the new sentence is no greater than the initial sentence. As of June 27, 2018, a court's power to resentence under this section expressly extends to judgments entered after a plea agreement, if in the interest of justice.

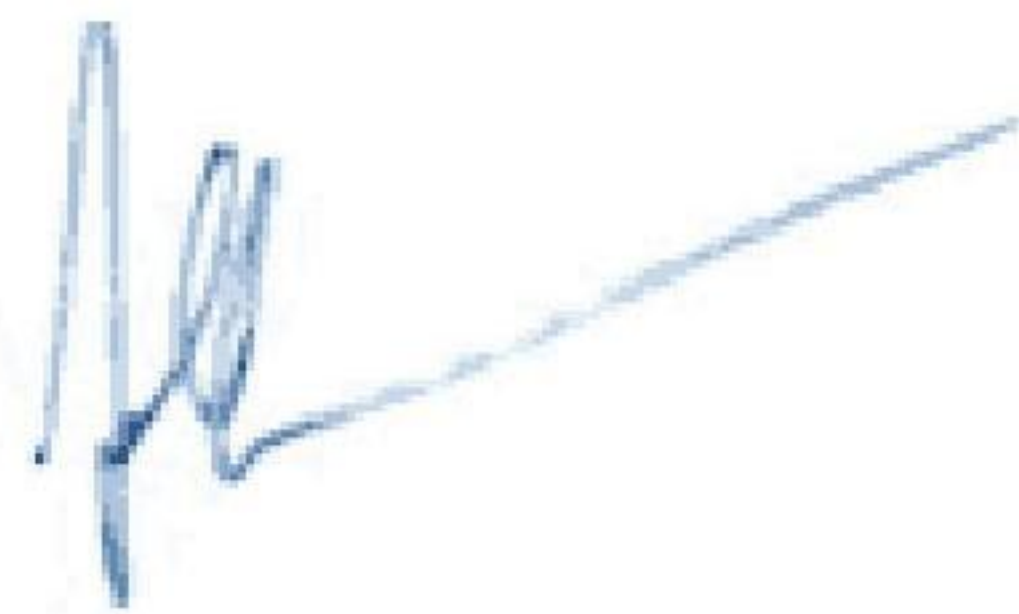
Incarcerated person Cabonce was sentenced on March 26, 2007, pursuant to a conviction of two counts of PC 187, Attempted Murder of Peace Officer/Firefighter 1st Degree, both with count enhancements of PC 12022(b)(1), Personal Use of Dangerous or Deadly Weapon, and PC 12022.7(a), Inflict GBI; PC 245(c) Assault with a Deadly Weapon on Peace Officer/Firefighter, with count enhancement of PC 12022.7(a) Inflict GBI; two counts PC 245(a)(1), Assault with a Deadly Weapon; and a term enhancement of PC 667(a)(1), Prior Felony Conviction of Serious Offense. Cabonce received a total sentence of 79 years and has a minimum eligible parole date of August 30, 2060.

The enhancement pursuant to PC 667(a)(1), provides for the imposition of a consecutive five-year enhancement on any person convicted of a serious felony for each previous conviction of a serious felony (or other qualifying conviction) brought and tried separately. Courts were previously barred from striking prior serious felony convictions for purposes of enhancement under this section. However, effective January 1, 2019, courts are now authorized to exercise

their discretion to strike prior serious felony convictions for purposes of enhancement under this section, or to strike the punishment for the enhancement under this section, pursuant to PC 1385.

The incarcerated person's case factors have been compiled and thoroughly reviewed. In light of the court's newfound authority, and after personally reviewing their commitment offense and in-prison conduct, I recommend that Cabonce's sentence be recalled and that they be resentenced in accordance with PC 1172.1(a)(1).

Sincerely,

A handwritten signature in blue ink, appearing to read 'Jeff Macomber', with a long horizontal stroke extending to the right.

JEFF MACOMBER

Secretary

Enclosures:
Cumulative Case Summary
Abstract of Judgment
Minute Order
Information Summary

cc: San Mateo County District Attorney's Office
San Mateo County Public Defender's Office